

Discovery limited to the motion to compel arbitration may proceed. In addition, the parties stipulate to taking the deposition of VICTORIA HINES to preserve her testimony for either trial or arbitration given her age and health. This limited discovery shall not serve as a waiver of arbitration by stipulation of the parties.

Department 3's matters will be heard by Department 8 on August 4, 2026. Any requests for oral argument should continue to be directed to Department 3.

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**MARTINEZ v. EDGE CMTY. CHURCH, ET AL.**  
**Case No. CU25-10889**

Demurrer

TENTATIVE RULING

Defendant Edge Community Church's unopposed demurrer to Plaintiff's complaint is sustained without leave to amend.

The court takes judicial notice of the statements of information from the California Secretary of State. (*Friends of Shingle Springs Interchange, Inc. v. County of El Dorado* (2011) 200 Cal.App.4th 1470, 1483-1484; see, e.g., *Elmore v. Oak Valley Hosp. Dist.* (1988) 204 Cal.App.3d 716, 722 [a statement filed with the Secretary of State and properly indexed is a document of which a court can properly take judicial notice].)

Contrary to Plaintiff's allegation that Defendant Edge Community Church "operates a shelter at 1260-1266 Sacramento St., Vallejo, CA. called the Solano Dream Center, which is. [sic] and at all times herein, was operated by Edge Community Church" (Complaint, ¶ 7), the judicially noticed statements of information from the Secretary of State establish that Defendant Edge Community Church and Solano Dream Center are distinct legal entities. Defendant Edge Community Church is a California Nonprofit Corporation with its principal office at 2300 Boynton Avenue in Fairfield. (RJN, Exh. A.) Solano Dream Center is a separate California Nonprofit Religious Corporation with its principal office at 2166 Sacramento Street in Vallejo. (RJN, Exh. B.) All of Plaintiff's causes of action are based on accepting Robert Quiros as a resident of Solano Dream Center despite his history of violent crime. (Complaint, ¶¶ 15, 25, 36.) Plaintiff has not alleged any other facts that would permit imposition of liability on Defendant Edge Community Church for the conduct of Nonparty Solano Dream Center.

Plaintiff has made no attempt to meet his burden of showing "in what manner he can amend the complaint and how that amendment will change the legal effect of his pleading." (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Cooper v. Equity Gen. Ins.* (1990) 219 Cal.App.3d 1252, 1263-1264; *McMartin v. Childrens' Inst. Int'l* (1989) 212 Cal.App.3d 1393, 1408.)

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